

Tentative Rulings for Department 503

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Tentative Ruling

Re: **GPP II, LLC v. Central Valley Community Sports Foundation**
Superior Court Case No. 24CECG02635

Hearing Date: June 16, 2026 (Dept. 503)

Motion: by GPP II, LLC for Summary Judgment of the First Amended Complaint and Summary Adjudication of the Second Amended Cross-Complaint

Tentative Ruling:

To deny GPP II, LLC's motions for summary judgment and summary adjudication.

Explanation:

Plaintiff and Cross-Defendant GPP II, LLC ("GPP") moves for summary judgment of its first amended complaint for damages and injunctive relief alleging trespass against Valley Community Sports Foundation ("Foundation") and for summary adjudication of the sixth cause of action for declaratory relief within Foundation's second amended cross-complaint.

"Summary judgment is granted when there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law.'" (*Lopez v. Superior Court* (1996) 45 Cal.App.4th 705, 713, quoting Code Civ. Proc. § 437c(c).) Summary judgment is properly directed toward the entire complaint and not portions thereof. (see *Barnick v. Longs Drug Stores, Inc.* (1988) 203 Cal.App.3d 377, 384; *Khan v. Shiley, Inc.* (1990) 217 Cal.App.3d 848, 858-859.)

Summary adjudication is the proper mechanism for challenging a particular, "cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty." (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 242.) However, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1); see also *Catalano v. Superior Court* (2000) 82 Cal.App.4th 91, 97 [piecemeal adjudication prohibited].)

A party moving for summary judgment bears the initial burden of production to make a prima facie showing that no triable issue of material fact exists. Only when the initial burden of production is met, does the burden shift to the responding party to demonstrate the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-51; see also *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 107.)

Any doubts as to whether a triable issue of material fact exist are to be resolved in favor of the party opposing summary judgment/adjudication. (*Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562; see also *See's Candy Shops, Inc. v. Superior Court*

(2012) 210 Cal.App.4th 889, 900 ["Summary adjudication is a drastic remedy and any doubts about the propriety of summary adjudication must be resolved in favor of the party opposing the motion."].)

Summary Adjudication of the Second Amended Cross-Complaint's Sixth Cause of Action

CVCSF's sixth cause of action for declaratory relief requests a judicial determination of rights of CVCSF, the City of Fresno, and GPP with respect to cross-access and parking rights throughout the Granite Park complex pursuant to the 2002-13 Statement of Covenants, 2002-13 Parcel Map Agreement, and the Conditions of Approval for both Parcel Maps 2002-13 and 2015-10. (SAXC, ¶¶ 65-67.)

In support of its motion, GPP sets forth as undisputed that neither the Parcel Map 2002-13 and related documents nor the Parcel Map 2015-10 and its related documents entitle CVCSF to parking rights on the "Retail Center," or parcels A through Q identified on Parcel Map 2015-10. (UMF Nos. 1, 2.) In support of these conclusions regarding the parties entitlements GPP primarily relies on the opinion of Mike Sanchez, a retired City Planner, Division Manager and Assistant Planning Director for the City of Fresno. Sanchez has reviewed the parcel maps and their related documents as well as CVCSF's discovery responses and it is his opinion that the language within the documents that CVCSF contends creates an easement for parking creates no such easement in favor of CVCSF. (Sanchez Decl., ¶¶ 16-24 [Parcel Map 2002-13 Documents], 25-28 [Parcel Map 2015-10 Documents].)¹

In its opposition, CVCSF argues the conclusions set forth as facts in the separate statement render the separate statement defective. The court acknowledges that these facts are conclusions but does not find the separate statement to be defective such that the motion should be denied. The presentation of the conclusion with supporting expert opinion is sufficient to meet GPP's initial burden on summary adjudication.

CVCSF disputes the conclusion that the parcel maps and their covenants and conditions of approval fail to create a right to parking. It relies on the declaration of Dirk Poeschel, a land use planner who worked with Milt Barbis and Brent Levy in connection with Granite Park, including obtaining land use permits from the City of Fresno. (Poeschel Decl., ¶¶ 1-6.)² Poeschel shares his opinion that, based on his understanding of the project and established standard of the City of Fresno, the project's parking met all applicable development standards, Granite Park was intended to be a shared parking complex, and without shared parking the park could not have otherwise met the standards the City had in place. (*Id.*, ¶¶ 7-9.)³ Given the court's inclination to resolve doubts as to whether a fact is disputed in favor of the party opposing summary judgment, the evidence is sufficient to demonstrate there is a dispute as to the parking rights of the parties set forth in the parcel map documents.

¹ CVCSF's Objections to the Sanchez Declaration Nos. 2-8 are overruled. As to CVCSF's remaining evidentiary objections, the court declines to rule on them, as the evidence was not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

² GPP's objections to paragraph 4 and paragraph 6, lines 22-23 are overruled. The objections to paragraph 5 lines 19-21 is sustained as hearsay.

³ GPP's objections to paragraphs 7, 8 and 9 are overruled.

Therefore, summary adjudication of the sixth cause of action of the second amended cross complaint is denied.

Summary Judgment of the First Amended Complaint for Trespass

Plaintiff moves for summary judgment of its own first amended complaint alleging a single cause of action for trespass against defendant CVCSF. In support of the motion, GPP sets forth as undisputed that neither the City nor CVCSF have an easement for parking over the parking tract. (UMF No. 4.) CVCSF disputes the fact directly, asserting as additional material facts that it has satisfied the elements to establish a prescriptive easement. (AUMF Nos. 2-7.) Whether CVCSF has established the elements of an easement by prescription is a question of fact. (*Warsaw v. Chicago Metallic Ceilings, Inc.* (1984) 35 Cal.3d 564, 570.)

As there is a dispute as to whether CVCSF has an easement for parking, the motion for summary judgment is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/12/2026.
(Judge's initials) (Date)